

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

**16. 9:00 AM CASE NUMBER: L25-14274
CASE NAME: CHRISTOPHER BOSCIA VS. ROBERT SERAFIN
HEARING ON DEMURRER TO: CHRISTOPHER BOSCIA'S DEMURRER TO CROSS COMPLAINT FILED ON
04/08/2026
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Cross-Defendant ("CD") filed a Demurrer to the Cross Complaint of Cross-Complainant ("CC"), along with a Declaration. CC filed a Response as well as a Declaration. All of the pleadings appear to have been served electronically. Though CC is self-represented and does not appear to have provided consent to email service, he did file a Response, so this court finds that parties have been properly served and notified.

Background

CD filed an initial Complaint in this matter, as Plaintiff, on 12/12/25, alleging breach of contract in that CC, as Defendant, on 8/20/22, failed to pay approximately \$6,600, plus interest, based on an agreement between the two parties for legal services.

The Cross Complaint, filed on 2/25/26, alleged that CC retained CD as counsel on 12/3/21, for a DVRO matter. There was a written fee agreement for legal counsel which detailed the scope of the representation, hourly rates, and terms of payment. The duration of the representation was for approximately 8 months, ending in August, 2022. During this period, CC paid a total of \$33,253.87 for the professional legal service as well as for the services of a third-party forensic expert. CC did not prevail at the hearing for the DVRO, and a court issued an order against him.

At some point after this restraining order was issued, CC obtained a different attorney who successfully represented him in a hearing to extend the original restraining order. CC paid this attorney approximately \$3,000.

On 11/29/23, CC executed a substitution of attorney. It is unclear when this act occurred relative to the representation of CC by the subsequent attorney.

The Cross Complaint reflects that CD is claiming an outstanding balance of approximately \$8,600, for the legal work plus unpaid interest on that balance, and that CD made this claim in the form of a demand letter on 10/28/25.

Though there are five causes of action, and only one specially alleges professional malpractice (the others include: declaratory relief; breach of contract; breach of fiduciary duty; and unjust enrichment), all causes of action in the Cross Complaint entirely stem from this representation, and all contend that CD, in some manner, improperly charged CD for the legal services. To be sure, two causes of action make the additional allegations that CD breached professional standards of care by communicating, during the representation, with a third-party attorney without the consent of CC; and by, essentially, failing to achieve a different outcome at the hearing for the DVRO. However, each cause reflects an allegation that centers on billing practices, either the manner of billing or the particular items or services that CD billed.

CD claims that these causes of action all stem from the same nexus of alleged facts, a nexus that suggests professional malpractice, and thus all are time-barred by Section 430.41 of the CCP. CD also notes, in the Response, that the Cross Complaint concedes that CC received detailed billing invoices no later than August 2022. (Line 18, Page 2, Response.) However, this court does not see any such concession in the Cross Complaint.

Analysis

A demurrer is proper when the pleading reveals the court has no jurisdiction of the subject 28 of the cause of action alleged in the pleading. (*Code Civ. Proc.*, § 430.10, *subd. (a)*.) A demurrer may be brought to challenge a legally insufficient petition for writ of mandate. (*SJJC Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052.)

When considering a demurrer, the court should accept as true “all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Zelig v. County of L.A.* (2002) 27 Cal.4th 1112, 1126, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer for lack of jurisdiction is proper where the litigation is untimely under the applicable statute of limitations. (*Code Civ. Proc.*, § 430.10, *subd. (a)*.)

California courts have long held that a responding party may also demur to an untimely complaint on the grounds that the complaint does not state facts sufficient to constitute a cause of action. (*Code Civ. Proc.*, § 430.10, *subd. (e)*; *Brown v. Martin* (1864) 25 Cal. 82, 93.)

A demurrer lies where the untimeliness of the lawsuit clearly and affirmatively appears on the face of the complaint. (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.) However, “[I]f those dates are missing, there is no ground for a general demurrer.” (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 505.) It is not enough that the complaint merely shows that the action may be barred. (*Coalition for an Equitable Westlake/MacArthur Park v. City of*

Los Angeles (2020) 47 Cal.App.5th 368, 376.)

Claims against an attorney for professional negligence are governed by Code of Civil Procedure section 340.6, which provides that an “action against an attorney for a wrongful act or omission . . . arising in the performance of professional services must be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.”

Under section 340.6, discovery occurs when the plaintiff discovers, or through reasonable diligence should have discovered, the facts constituting the wrongful act or omission, not when the plaintiff recognizes that those facts support a legal malpractice theory. (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 685.) It is irrelevant that the plaintiff may not have appreciated the legal significance of those facts at the time. *Id.*

Causes of action under other guises, except for fraud, are subject to the limitations of Section 340.6 if they depend on the alleged wrongful acts or omissions in the performance of legal services. (*Levin v. Graham & James* (1995) 37 Cal.App.4th 798, 805-806.)

The California Supreme Court has provided a test for the application of this limitation. Specifically, this “time bar applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a ‘professional obligation’ is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform the services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1236-1237.)

When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

In the instant matter, there does not appear to be one cause of action that *does not* depend on proof that CD violated a professional obligation while providing services to CC as his attorney. Each claim, whether it be unreasonable or excessive billing for legal services; or conducting unnecessary legal work; or by consulting a third-party attorney, necessarily hinges on proof that CD breached a professional duty of care as an attorney. Even in the attempt to construe the Cross Complaint in a

manner most favorable to CC, this court cannot conjure a cause of action independent of professional malpractice. This certainly is not a matter of conversion.

Thus, this court finds that the causes of action in the Cross Complaint are subject to a one-year period of limitation.

It is when CC comes into possession of an itemized billing statement that he *should* be aware of the facts giving rise to a claim. It is this same event that would begin the one-year period of limitation. However, it is unclear when CC learned of these billing practices, or even when he should have learned of these billing practices.

Though CC made a payment of approximately \$30,000 (excluding the separate amount for forensic work) by August of 2022, and the professional relationship between CD and CC clearly ended no later than 11/29/23, there is no indication of when CD provided to CC an itemized billing statement, one that would detail the particular items and services for which CD sought recompense. It certainly *may* have been the case that CD provided an itemized billing statement in 2022, which led to the \$30,000 payment by CC. But it is also reasonable to infer that CD did not provide any itemized billing until sending the demand letter in 2025, and that CC made the \$30,000 payment in 2022 after receiving only a basic invoice from CD, one that was in written form or even provided orally and consisted only of an amount and did not contain any itemized detail.

Yet, that moment is unclear. The date that CD provided itemization of the services he provided is missing.

Thus, though the Cross Complaint may show that the causes of action are time barred, this is not enough.

Disposition

Demurrer is overruled.

Cross Complainant to file Order and serve copy of filed Order on Cross Defendant.

**17. 9:00 AM CASE NUMBER: MSL19-03670
CASE NAME: AUTOVEST VS POWELL
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is